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Case Number: 23PSCV01465 Hearing Date: September 8, 2026 Dept: 6

CASE

NAME: Laura

Martorana v. City of Azusa, et al.

Plaintiff's

Renewed Motion to Enforce Settlement Agreement with Dapper Plumbing & Septic, LLC

TENTATIVE

RULING

The Court DENIES Plaintiff's Renewed Motion to Enforce Settlement Agreement with Dapper Plumbing & Septic, LLC with prejudice.

Dapper is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a premises liability case. On May 15, 2023, plaintiff Laura Martorana (Plaintiff) filed this action against defendants City of Azusa, Diamond House Construction, Inc. (collectively, Defendants) and Does 1 to 50, alleging causes of action for general negligence and premises liability. On February 6, 2026, Plaintiff dismissed the complaint against Defendant 317 S. Irwindale, LLC with prejudice. On March 3, 2026, Plaintiff dismissed the complaint against City of Azusa with prejudice.

On November 21, 2023, City of Azusa filed a cross-complaint. On July

3, 2024, City of Azusa filed its operative First Amended Cross-Complaint against Diamond House Construction, Inc., Gustavo Leza, and Does 1 to 20, alleging causes of action for declaratory adjudication of equitable indemnity rights and declaratory adjudication of express indemnification rights. On October 4, 2024, City of Azusa filed a Doe amendment substituting 317 S. Irwindale LLC for Doe 1 and Cabinet Gallery, LLC for Doe 2. On March 9, 2026, City of Azusa dismissed its cross-complaint without prejudice.

On March 24, 2025, Cabinet Gallery LLC filed a cross-complaint against Dapper Plumbing & Septic LLC (Dapper) and Roes 1 to 20, alleging causes of action for total equitable indemnity, comparative indemnity and apportionment of fault, and declaratory relief. On July 2, 2026, Cabinet Gallery LLC dismissed its cross-complaint with prejudice.

On April 9, 2025, 317 S. Irwindale, LLC filed a cross-complaint against Dapper Plumbing & Septic LLC and Moes 1 to 20, alleging causes of action for declaratory relief, implied indemnity, comparative equitable indemnity, total equitable indemnity, implied contractual indemnity, and contribution. On January 20, 2026, the Court granted Cross-Defendant 317 S. Irwindale, LLC's application for determination of good faith settlement. On February 6, 2026, 317 S. Irwindale, LLC dismissed its cross-complaint without prejudice.

On February 10, 2026 Plaintiff filed a Notice of Settlement of Entire Case, indicating a conditional settlement with a request for dismissal to be filed no later than March 27, 2026. On February 10, 2026, the Court set an Order to Show Cause Hearing re Dismissal on April 13, 2026. On February 27, 2026, the Court granted Cross-Defendant Dapper Plumbing & Septic LLC's application for determination of good faith settlement. The April 13, 2026 OSC hearing did not take place because the parties filed dismissals of their actions prior to April 13, 2026.

On June 22, 2026, the Court summarily denied Plaintiff's motion to enforce settlement agreement against Dapper for lack of jurisdiction.

On July 27, 2026, Plaintiff filed a renewed motion to enforce settlement agreement with Dapper Plumbing & Septic, LLC. On August 24, 2026, Dapper filed an opposition. On September 1, 2026, Plaintiff filed a reply.

LEGAL

STANDARD

“If

parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6, subd. (a).)

“A

party may file a motion or other document pertaining to the settlement, including an application for determination of good faith settlement, a motion for the reduction or determination of a lien, a petition related to the compromise of the claim of a minor or person with a disability, or, if the terms of a settlement are not performed, a motion based upon such terms. Responsive filings and related documents may also be filed.” (Code Civ. Proc., § 664.6, subd. (f)(1).)

“When

an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc., § 1008, subd. (a).)

PRELIMINARY

ISSUES

Plaintiff’s Motion contains an
excessively long Notice with substantive arguments, which the Court finds an

improper attempt to evade the page limits for an opening memorandum. (See Motion, pp. 1-5; Cal. Rules of Court, rule 3.1113, subd. (d).)

Plaintiff's Motion also improperly attributes the following quotation to *Andruss v. Superior Court* (1996) 46 Cal.App.4th 1276 (Andruss): "Further, the plain language of section 877.6 requires the Court to make a determination regarding the good faith of the proposed settlement agreement." (Motion, 8:3-5.) No such language is found in *Andruss*. The Court will discuss this further with Plaintiff's counsel at the hearing on this Motion.

DISCUSSION

Plaintiff

Laura Martorana contends that she and Dapper entered into a binding written settlement requiring Dapper to pay \$25,000 in exchange for a release of her claims, and that the requirements for enforcement under Code of Civil Procedure section 664.6 — contract formation and a writing containing the material terms — are satisfied. Plaintiff argues that, upon her February 10, 2026 conditional Notice of Settlement, the Court retained jurisdiction to enforce the settlement on its own motion under section 664.6, subdivisions (a) and (e)(1), and under the Superior Court's procedures for retaining jurisdiction, without any stipulation by the parties. Plaintiff further asserts that the Court's February 10, 2026 order expressly retained jurisdiction to enforce the settlement, and that the Court thereafter erred by prematurely dismissing Dapper with prejudice when it approved the good faith settlement and by vacating the April 13, 2026 Order to Show Cause before payment was completed. Plaintiff contends that she never filed a request to dismiss the entire action and that dismissal was always conditional on satisfaction of the settlement terms, which remain unperformed because Dapper has not paid. Plaintiff therefore requests that the Court enforce the settlement and enter judgment for the \$25,000, together with prejudgment interest and attorney fees and costs.

Plaintiff's

Renewed Motion still fails. First, although styled a "renewed motion," Plaintiff's Renewed Motion seeks the same relief the Court denied on June 22, 2026, which makes this a motion for reconsideration. (Code Civ. Proc., § 1008, subd. (b).) Plaintiff failed to provide an affidavit setting forth new or different facts, circumstances, or law warranting reconsideration. (See generally, *Booker II Decl.*) Plaintiff also failed to provide a satisfactory

explanation for not presenting the new or different information earlier. This is a jurisdictional ground for denying Plaintiff's Renewed Motion. (See Even Zohar Constr. & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830, 839-840.)

Second,

as previously found, Plaintiff and Dapper never requested the Court retain jurisdiction under Code of Civil Procedure section 664.6. (Order Re: Court Ruling (6/22/26).) Plaintiff's and Dapper's settlement agreement contains no provision providing the Court with continuing jurisdiction under Code of Civil Procedure section 664.6, and Plaintiff presented no evidence of the parties requesting the Court retain jurisdiction under section 664.6 or an order from the Court demonstrating it had retained jurisdiction under section 664.6. (See generally, Booker II Decl.) Plaintiff's Notice of Settlement of Entire Case is not an order from the Court conferring such jurisdiction, nor does the Court's February 10, 2026 order confer such jurisdiction. The February 10, 2026 order merely advises that the Court will dismiss without prejudice and retain jurisdiction under Code of Civil Procedure section 664.6 if there are no appearances at the OSC hearing, if no dismissal is filed, or if no good cause is shown why the action should not be dismissed by the time of the OSC. (See Booker II Decl., Exs. 3-4.) This order did not actually retain jurisdiction. It merely set up a future, conditional mechanism to do so, which was never triggered because the case was dismissed on February 27, 2026. Further, the May 16, 2025 notice from the Superior Court of California, County of Los Angeles, is also not such an order, nor does it mandate that the Court retain jurisdiction following a Notice of Settlement. Rather, it merely informs attorneys of a general practice by the Superior Court regarding Notices of Settlement. (See Booker II Decl., Ex. 5.)

Finally,

Plaintiff did not sue Dapper so there could be no dismissal by Plaintiff or the Court as to Dapper. Dapper was only named as a cross-defendant by Cabinet Gallery, LLC and by 317 S. Irwindale, LLC. On February 6, 2026, 317 S. Irwindale, LLC voluntarily dismissed its cross-complaint without prejudice and Dapper was dismissed from Cabinet Gallery, LLC's cross-complaint on February 27, 2026 with the Court's granting of Dapper's application of good faith settlement. Further, on July 2, 2026, Cabinet Gallery dismissed its cross-complaint with prejudice. Thus, Dapper is no longer a party to this action and there is no evidence that Plaintiff and Dapper agreed to the Court retaining jurisdiction to enforce any settlement agreement.

Based on the foregoing, the Court summarily DENIES the Motion with prejudice. However, the Court's ruling does not reach the issue of the enforceability of any agreement or whether Plaintiff can file a separate action against Dapper regarding the settlement.

CONCLUSION

The Court DENIES Plaintiff's Renewed Motion to Enforce Settlement Agreement with Dapper Plumbing & Septic, LLC with prejudice.

Dapper is ordered to give notice of the Court's ruling within five calendar days of this order.